

Dr. Jigisha J. Shah & Shri Pratik Shah

(Daughter and Son-in-law / Authorised Representatives of the insured, Dr. Jagdish N. Nanavati, aged 78)

614, Indraprastha, 1/D, Raheja Township, Opp. Ashoka Hospital, Jitendra Road, Malad (East), Mumbai – 400 097.

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Date: 8th July 2026 | Place: Mumbai

To,

The Insurance Ombudsman

Office of the Insurance Ombudsman, Mumbai

3rd Floor, Jeevan Seva Annexe, S. V. Road, Santacruz (West), Mumbai – 400 054.

Tel.: 022-69038800 | Email: oio.mumbai@cioins.co.in

Sub: Complaint to the Insurance Ombudsman under the Insurance Ombudsman Rules, 2017 against The Oriental Insurance Co. Ltd. (Dadar D.O., Code 132900) and MD India Health Insurance TPA Pvt. Ltd. (ID YA0000000334) — wrongful cancellation / non-renewal of Mediclaim Policy No. 132900/48/2026/9052, false denial of policy records, and repudiation of a valid claim, against a 78-year-old senior citizen with 14 years of continuous cover. Reliefs sought: (i) retroactive reinstatement of the policy with full continuity, and (ii) settlement of the pending medical claim on merits.

Ref: IRDAI Bima Bharosa Complaint No. 06-26-015022 dated 15/06/2026 (“Escalated”; due 30/06/2026; grievance finally rejected by the Insurer on 08/07/2026).

Respected Sir / Madam,

We are the daughter and son-in-law of, and authorised representatives for, Dr. Jagdish Natwarlal Nanavati, aged 78 years (Date of Birth: 26/02/1948; Insured’s Code 53804847), a senior citizen who is not conversant with digital systems and who has, at all material times, relied on physical documentation and on the representations of the Insurer and its authorised agent. This complaint is filed after the Insurer repudiated the claim and, after the mandatory redressal timeline had lapsed, finally rejected our grievance by email dated 08/07/2026.

Dr. Nanavati has held a Mediclaim policy with The Oriental Insurance Co. Ltd. continuously and without any break for 14 years, since 28 February 2012. Under the immediately preceding policy (No. 132900/48/2025/9247) the Insurer had successfully settled Claim No. 132900/48/2026/00000502 for Rs. 1,83,456/-. There has never been a single lapse, dispute or default in this relationship.

For the renewal year 2026-27 the renewal premium of Rs. 28,199/- was duly paid on 10/02/2026 by cheque to the Insurer’s authorised agent, Smt. A. A. Karmalkar (Agent Code BA0000037661), functioning under Development Officer Mrs. Prachitree Gawade (Code NY0000000012). The instrument was Cheque No. 000625 dated 03/02/2026 drawn on Bank of Baroda, Malad (East) (A/c 12470100000001), recorded by the Insurer as Collection No. 1085009636 dated 10/02/2026.

On 12/02/2026 at 10:14:14 IST the Insurer generated and **digitally signed** the official “Oriental Mediclaim Insurance Policy (Individual) – 2024 Policy Schedule” bearing the new Policy No. 132900/48/2026/9052, Sum Insured Rs. 3,00,000/-, period of insurance 28/02/2026 to 27/02/2027, showing the premium as collected. The Insurer’s authorised agent, who had collected the renewal premium, at all material times treated the policy as subsisting, and the agent’s official application reflected the policy as being in force. Relying in good faith on this digitally-signed schedule and on the agent’s assurance, the family — an elderly, non-technical household — reasonably believed the renewal was complete.

It later transpired that the cheque had been returned on 13/02/2026 — not for insufficiency of funds, but because of a temporary debit-freeze on the account arising from a Re-KYC formality. This is confirmed in writing by Bank of Baroda (letter dated 02/06/2026): the account balance on the date of presentation was Rs. 3,12,401.51 (far exceeding the premium), the return was solely due to “Account debit freeze due to Non-compliance of timely Re-KYC updation”, and the Re-KYC was duly complied with on 04/03/2026. There was thus no insufficiency of funds and no wilful default whatsoever.

Crucially, the Insurer never served any written notice of dishonour, nor any cancellation notice, upon the senior-citizen policyholder or the agent. Had any intimation been given, the modest sum of Rs. 28,199/- would have been paid instantly in cash or by demand draft, well within the grace period. Instead, having issued a digitally-signed schedule, and with even its own authorised agent treating the policy as in force, the Insurer allowed the family to remain in the settled belief that the cover subsisted.

In May 2026 the insured underwent medical treatment. The claim was intimated on 13/05/2026 and the complete claim papers were submitted to the Insurer’s office on 27/05/2026 through the agent. Tellingly, on 28/05/2026 the Insurer’s own authorised agent wrote to the TPA and to the Divisional Office (132900@orientalinsurance.co.in) confirming that she had submitted the claim papers on 27/05/2026 and requesting that a claim number be issued — that is, more than three months after the supposed February 2026 cancellation, the Insurer’s own agent was actively pursuing the claim, plainly unaware of any cancellation. The “cancelled” status surfaced only when the claim was rejected. The claim was thereafter repudiated: by the TPA, MD India (Ms. Pranita More, Grievance Dept., 17/06/2026), on the ground that the policy was “showing as cancelled... due to the dishonour of the premium cheque”; and by the Dadar Divisional Office (Ms. Kitty Singla, Manager, 10/06/2026), which asserted that “there is no record of a new policy generated in our system, hence the claim will not be payable.” That assertion is directly and demonstrably false, being contradicted by the Insurer’s own digitally-signed Policy Schedule of 12/02/2026.

A formal grievance was lodged with the Insurer by email dated 02/06/2026 and thereafter on the IRDAI Bima Bharosa portal on 15/06/2026 (Complaint No. 06-26-015022, category “Insurer cancelled policy arbitrarily without serving notice”). Although the complaint was marked “Escalated” and shown as due for redressal by 30/06/2026, that deadline passed without resolution. Finally, by email dated 08/07/2026, the Insurer’s Deputy Manager (Ms. Vijayshree V. Shirodkar, Dadar B.O.), replying to the escalated grievance, stated that the matter had been taken up with higher authority and that the “competent authority” had decided the policy “stands cancelled” on account of the cheque dishonour, and that no claim would be admitted. The internal remedy thus stands exhausted by an adverse final decision, compelling this complaint before your good office.

Grounds of Complaint

1. **The Insurer's own record disproves its denial.** The digitally-signed Policy Schedule of 12/02/2026 (10:14:14 IST) conclusively falsifies the branch's claim that "no record exists" of the renewed policy.
2. **No insufficiency of funds; no wilful default.** The cheque was returned only because of a Re-KYC debit-freeze; the account held Rs. 3,12,401.51, as certified by Bank of Baroda. The "void ab initio on dishonour" clause cannot equitably be invoked where the return was a bank-side KYC formality, funds were amply available, and the Insurer had already issued a signed schedule.
3. **Breach of the duty to give notice.** An insurer cannot silently drop a 14-year policy on a technical cheque return without proper written notice and an opportunity to cure within the grace period. A bare system log or unverified outbound alert is not a substitute for documented notice served on a vulnerable senior citizen.
4. **Estoppel — the Insurer is bound by its own agent's conduct.** The principal (Oriental Insurance) is bound by the acts and representations of its authorised agent. The agent collected the renewal premium and, in May 2026, herself submitted the reimbursement claim to the Divisional Office — conduct showing that even the Insurer's own agent treated the policy as subsisting. Having issued a signed schedule and so held the policy out as in force, the Insurer is estopped from now denying its existence, the more so because this prevented timely corrective payment within the grace period.
5. **Gross deficiency of service and apathy toward a vulnerable senior citizen,** aggravated by the false "no record" assertion and the failure to redress the Bima Bharosa grievance within the mandatory timeline.

Reliefs Prayed For

The complainant respectfully prays that this Hon'ble Ombudsman be pleased to:

- (a) **Direct reinstatement of the policy** — revive Policy No. 132900/48/2026/9052 retroactively (period 28/02/2026–27/02/2027) with full restoration of the 14-year continuity benefits and waiting-period credits, upon the complainant's immediate payment of Rs. 28,199/- by cash / demand draft; and
- (b) **Direct settlement of the pending claim** — direct the Insurer and MD India TPA to process and settle, on merits and under the revived policy, the medical claim intimated on 13/05/2026 (papers submitted 27/05/2026).

We request an opportunity of personal hearing and shall produce all originals for inspection. The documents relied upon are listed in the enclosures to the accompanying complaint form (Annexure VI-A).

Yours faithfully,



Dr. Jagdish N. Nanavati (Complainant / Policyholder)



Dr. Jigisha J. Shah (Authorised Representative)

ANNEXURE VI-A

FORM OF COMPLAINT TO THE INSURANCE OMBUDSMAN

(Under the Insurance Ombudsman Rules, 2017)

To: The Insurance Ombudsman, Mumbai — 3rd Floor, Jeevan Seva Annexe, S. V. Road, Santacruz (W), Mumbai 400 054.		
1.	Name of the Complainant	Dr. Jagdish Natwarlal Nanavati (Senior Citizen, aged 78; DOB 26/02/1948; Insured's Code 53804847), through his daughter Dr. Jigisha J. Shah and son-in-law Shri Pratik Shah (Authorised Representatives).
2.	Complete Address	614, Indraprastha, 1/D, Raheja Township, Opp. Ashoka Hospital, Jitendra Road, Malad (East), Mumbai – 400 097.
3.	Mobile & Email	Mobile: 9930203893 / 9969028110 Email: drjigishapshah@gmail.com; pratikshah83@gmail.com
4.	Name & address of insurer's office complained against	The Oriental Insurance Co. Ltd., Divisional Office, Dadar (Code 132900), 2nd Floor, Lakshmi Commercial Centre, Senapati Bapat Marg, Dadar (W), Mumbai – 400 028 (132900@orientalinsurance.co.in). TPA: MD India Health Insurance TPA Pvt. Ltd. (ID YA0000000334), MD India House, Sr. No. 46/1, Pune Nagar Road, Vadgaonsheri, Pune – 411 014.
5.	Policy / Claim particulars	Policy in dispute: No. 132900/48/2026/9052 (2026-27), Sum Insured Rs. 3,00,000/-, period 28/02/2026–27/02/2027; MDID No. MDI5-0038940838. Premium: Rs. 28,199/- — Cheque No. 000625 dtd 03/02/2026 (Bank of Baroda, Malad E, A/c 12470100000001); Insurer Collection No. 1085009636 dtd 10/02/2026. Preceding policy: No. 132900/48/2025/9247; continuous cover since 28/02/2012 (14 years). Prior claim settled: No. 132900/48/2026/00000502 for Rs. 1,83,456/-.
6.	Nature of complaint	Wrongful cancellation / non-renewal of the mediclaim policy following a cheque return caused by a bank Re-KYC debit-freeze (not insufficiency of funds), without any written notice; the Insurer had issued a digitally-signed policy schedule (12/02/2026, 10:14:14 IST) and its own authorised agent (who collected the premium and later submitted the claim) treated the policy as in force; consequent false “no record” denial and repudiation of a valid claim.
7.	Dates of the cause of action	Cheque returned: 13/02/2026 (Re-KYC freeze). Claim intimated: 13/05/2026; papers submitted: 27/05/2026. Repudiated by Oriental D.O.: 10/06/2026; by MD India TPA: 17/06/2026. Bima Bharosa grievance: 15/06/2026 (due 30/06/2026). Final grievance rejection by Oriental Deputy Manager: 08/07/2026.
8.	Representation already made to the insurer	Yes — grievance email to the Insurer dtd 02/06/2026; and IRDAI Bima Bharosa Complaint No. 06-26-015022 dtd 15/06/2026 (category “Insurer cancelled policy arbitrarily without serving notice”). The Insurer's final reply dated 08/07/2026 rejected the grievance after the prescribed timeline had lapsed.
9.	Relief sought from the Ombudsman	(i) Retroactive reinstatement of Policy No. 132900/48/2026/9052 with full 14-year continuity and waiting-period credits, on immediate payment of Rs. 28,199/- by cash/DD; and (ii) settlement of the pending medical claim (intimated 13/05/2026) on merits under the revived policy.
10.	Amount of claim / financial loss	Reinstatement of Sum Insured Rs. 3,00,000/-; medical reimbursement claim of approximately Rs. 50,000/- (as per the claim papers submitted on 27/05/2026); plus loss of continuity and waiting-period benefits.

DECLARATION

I / We hereby declare that:

- the information furnished above is true and correct to the best of my/our knowledge and belief;

- the subject matter of this complaint has never been and is not pending before any Court, Consumer Forum, arbitrator or any other authority, nor has any such body passed any order on it;
- the complaint is filed within the period of limitation prescribed under the Insurance Ombudsman Rules, 2017;
- I/We undertake to produce the originals of all enclosed documents for inspection when required, and to pay the renewal premium of Rs. 28,199/- forthwith upon the policy being directed to be reinstated.

LIST OF ENCLOSURES

1. Digitally-signed “Oriental Mediclaim Policy Schedule” dated 12/02/2026, 10:14:14 IST (Policy No. 132900/48/2026/9052) — 9 pages. [Evidence A]
2. Agent’s email dated 28/05/2026 (contained in the thread at Enclosure E) confirming submission of the claim papers on 27/05/2026 and requesting a claim number — proving the Insurer’s own agent treated the policy as in force months after the alleged cancellation. [Evidence B]
3. Bank of Baroda letter dated 02/06/2026 certifying cheque return due to Re-KYC freeze and balance of Rs. 3,12,401.51 (no insufficiency of funds). [Evidence C]
4. IRDAI Bima Bharosa Complaint No. 06-26-015022 registration and status page (“Escalated”, due 30/06/2026). [Evidence D]
5. Repudiation email of Oriental Insurance (Ms. Kitty Singla) dated 10/06/2026, together with the agent’s claim-submission email dated 28/05/2026 in the same thread. [Evidence E]
6. Repudiation email of MD India TPA (Ms. Pranita More) dated 17/06/2026.
7. Grievance email to the Insurer dated 02/06/2026 and legal counter-response dated 12/06/2026. [Evidence G]
8. Oriental Insurance final grievance-rejection email (Ms. Vijayshree V. Shirodkar, Deputy Manager) dated 08/07/2026, confirming rejection after escalation to the competent authority. [Evidence H]
9. Copy of preceding Policy No. 132900/48/2025/9247 and proof of settled Claim No. 132900/48/2026/00000502 (Rs. 1,83,456/-).
10. Hospital bills, discharge summary and claim papers (submitted 27/05/2026).
11. Letter of authorisation from Dr. Jagdish N. Nanavati in favour of the representatives, with ID proof.



Dr. Jagdish N. Nanavati (Complainant)

Place: Mumbai



Dr. Jigisha J. Shah (Authorised Representative)

Date: 8th July 2026